

Defendant moves under Code of Civil Procedure section 454 that plaintiff be precluded from offering an account at trial, or, in the alternative, that plaintiff be ordered to provide a further account.

Section 454 provides as follows:

It is not necessary for a party to set forth in a pleading the items of an account therein alleged, but he must deliver to the adverse party, within ten days after a demand thereof in writing, a copy of the account, or be precluded from giving evidence thereof. The court or judge thereof may order a further account when the one delivered is too general, or is defective in any particular.

The “account” is often referred to as a “Bill of Particulars.” Failure to comply with the ten-day limit does not require exclusion, at least where a response was provided shortly after the deadline and there is no prejudice to the defendant. (*Cromer v. Strieby* (1942) 54 Cal.App.2d 405, 409.)

Plaintiff’s response is essentially that discovery under the Civil Discovery Act is the more appropriate method to resolve these issues, because the provision is intended to enable the defendant to respond to the complaint. (See *Dobbins v. Hardister* (1966) 242 Cal.App.2nd 787, 795.) Plaintiff offers no justification for the failure to timely respond. As to the sufficiency of the materials, Plaintiff argues that the response included “all available account statements,” and that this is sufficient.

Defendant’s initial request for a Bill of Particulars made 9 separate requests (including subparts). She alleges that the statements provided did not satisfy all of the demands (although the response is not provided). Defendant, however, fails to establish that she is entitled to make specific demands that go beyond simply setting forth “a copy of the account” as set forth in the statute.

Defendant also objects that the response was not verified, but the statute (in the second paragraph of section 454), requires that the Bill of Particulars be verified only where the complaint was verified. The complaint here was not verified.

Defendant has failed to establish that it was prejudiced by the late filing of the Bill of Particulars. While the Bill apparently did not comply with Defendant’s specific demands, the Court finds that Defendant has not shown that it is “too general, or is defective in any particular,” as required by section 454.

The motion is denied.

**7. 9:00 AM CASE NUMBER: L25-09371
CASE NAME: CAPITAL ONE N.A. VS. BRANDON RUTLEY**

***HEARING ON MOTION IN RE: MTN TO VACATE DISMISSAL & ENTER JUDGMENT FILED BY PTLF. ON 06/09/2026**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Plaintiff moves to vacate the dismissal entered pursuant to stipulation and enter a judgment for plaintiff.

Plaintiff gave notice to defendant of its intent to enforce the terms of the stipulation by way of a notice dated March 16, 2026. Defendant filed a responsive declaration on April 7, 2026. Plaintiff filed this motion on June 9, 2026. The matter was set for September 22, 2026. The file contains no evidence, however, that plaintiff ever served the moving papers or notice of hearing date. Defendant's mailing address is contained in his declaration filed April 7, 2026.

Due to the lack of service on defendant, the motion is continued to January 12, 2027, at 9:00 a.m.

8. 9:00 AM CASE NUMBER: L25-11330

CASE NAME: WELLS FARGO BANK, N.A. VS. ANDREW LAWRENCE

***HEARING ON MOTION FOR DISCOVERY MTN TO DEEM REQ'S FOR ADMISSIONS ADMITTED & FOR NONAPPEARANCE FILED BY PLTF ON 05/29/2026**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Plaintiff moves to deem admitted Requests for Admission, which were served on defendant and to which no response was made.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory, unless the party subject to the sanction acted with substantial